

Form No. INC-33**e-MOA (e-Memorandum of Association)**

[Pursuant to Schedule I (see Sections 4 and 5) to the Companies Act, 2013]]



Form language

☒ English☐ Hindi

Refer instruction kit for filing the form.

All fields marked in * are mandatory

* Table applicable to company as notified under schedule I of the Companies Act, 2013

A - MEMORANDUM OF ASSOCIATION OF A COMPANY LIMITED BY SHARES

(A - MEMORANDUM OF ASSOCIATION OF A COMPANY LIMITED BY SHARES

B - MEMORANDUM OF ASSOCIATION OF A COMPANY LIMITED BY GUARANTEE AND NOT HAVING A SHARE CAPITAL

C - MEMORANDUM OF ASSOCIATION OF A COMPANY LIMITED BY GUARANTEE AND HAVING A SHARE CAPITAL

D - MEMORANDUM OF ASSOCIATION OF AN UNLIMITED COMPANY AND NOT HAVING SHARE CAPITAL

E - MEMORANDUM OF ASSOCIATION OF AN UNLIMITED COMPANY AND HAVING SHARE CAPITAL)

Table A/B/C/D/E

1 The name of the company is

KIZI APPARELS LIMITED

2 The registered office of the company will be situated in the State of

Rajasthan

3 (a) The objects to be pursued by the company on its incorporation are:

Manufacture of wearing apparel n.e.c.

1. To buy all kinds of plant, equipment, machinery, apparatus, tools, utensils, commodities, substances, articles and things necessary or useful for carrying on the objects of the Company.
2. To open retail stores for selling the goods manufactured by the Company and similar goods of other manufacturers which the Company may purchase and deal in, as principals or as agents, distributors or as commission agents.
3. To purchase, take on lease or tenancy or in exchange, hire, take options over or otherwise acquire for any estate or interest whatsoever and to hold, develop, work, cultivate, deal with and turn to account concessions, grants, decrees, licences, privileges, claims, options, leases, property, real or personal or rights or powers of any kind which may appear to be necessary or convenient for any business of the Company and to purchase, charter, hire, build or otherwise acquire vehicles of any or every sort of description for use on or under land or water or in the air and to employ the same in the carriage of merchandise of all kinds or passengers.
4. To acquire from any person, firm or body corporate, whether in India or elsewhere, technical

Information, know-how, processes, engineering, manufacturing and operating data, plans, layouts and blue prints, useful for the design, erection and operation of plant required for any of the businesses of the Company and to acquire any grant or licence and other rights and benefits in the foregoing matters and things.

5. To sell, exchange, mortgage, let on lease, royalty or tribute, grant licences, easements, options and other rights over and in any other manner deal with or dispose of the whole or any part of the under taking, property, assets, rights and effects of the Company for such consideration as may be thought fit and in particular for stocks, shares, whether fully or partly paid up, or securities of any other company.

6. To pay for any rights or property acquired by the Company and to remunerate any person, firm or body corporate rendering services to the Company either by cash payment or by allotment to him or them of shares or securities of the Company as paid up in full or in part or otherwise.

7. To insure with any other company, firm or persons against losses, damages and risks of all kinds which may affect the Company, provided that nothing herein contained shall empower the Company, to carry on the business of life assurance, accident assurance, fire assurance, employer's liability assurances, industrial assurance, motor assurance or any business of insurance or reinsurance within the meaning of the Insurance Act, 1938 or any Act amending, extending or re-enacting the same.

8. To lend and advance money, either with or without security and give credit to such persons, firms or body corporate (including Government) and upon such terms and conditions as the Company may think fit.

9. To undertake financial and commercial obligations, transactions and operations of all kinds.

10. To Invest any moneys of the Company in such investments (other than shares or stock in the Company) as may be thought proper and to hold, sell or otherwise deal with such investments.

11. To receive money on deposit or loan and borrow or raise money in such manner as the Company shall think fit, and in particular by the issue of debentures or debenture stock (perpetual or otherwise) and to secure the repayment of any money borrowed, raised or owing by mortgage, charge or lien upon all or any of the property or assets of the Company (both present and future), including its uncalled capital, and also by a similar mortgage, charge or lien to secure and guarantee the performance by the Company or any other persons or company of any obligation undertaken by the Company or any other person or company as the case may be.

12. To guarantee the performance of any contract or obligation of and the payment and

repayment of money or of dividends and interest or premiums payable on any stock, shares or securities of any company, corporation, firm or person in any case in which such guarantee may be considered likely directly or indirectly to further the objects of Company or the interests of its shareholders.

13. To subscribe for, acquire, hold, sell and otherwise deal in shares, stock, debentures, debenture-stock, bonds, mortgages, obligations and securities of any kind issued or guaranteed by any company (body corporate or undertaking) of whatever nature andwheresoever constituted or carrying on business in shares, stock, debentures, debenture-stock, bonds, mortgages, obligations and other securities issued or guaranteed by any government, sovereign ruler, commissioners, trust, municipal, local or other authority or body ofwhatever nature, whether in India or elsewhere.

14. To draw, make, accept, endorse, discount negotiate, execute and issue bills of exchange, promissory notes, bills of lading, warrant, debentures and other negotiable or transferable instruments or securities.

15. To apply for, purchase or otherwise acquire and protect, prolong and renew in any part of the world any patents, patent rights, brevets invention, trade marks, designs, licences, protections, concessions, monopolies and the like conferring any exclusive or non-exclusive or limited right to their use or any secret or other information as to any invention, process or privilege which may seem capable of being used for any of the purposes of the Company or the acquisition of which may seem calculated directly or indirectly to benefit the Company and to use, exercise, develop or grant licences or privileges in respect of or otherwise turn to account, the property, rights and information so acquired and to carry on any business in any way connected therewith.

16. To expend money in experimenting on and testing and improving or seeking to improve any patents, rights, inventions, discoveries, processes or information of the Company or which the Company may acquire or propose to acquire.

17. To establish, provide, maintain and conduct research and other laboratories, training colleges, schools and other institutions for the training, education and instruction of students and others who may desire to avail themselves of the same and to provide for the delivery and holding of lectures, demonstrations, exhibitions, classes, meetings and conferences in connection therewith.

18. To acquire and undertake all or any part of the business, property and liabilities of any person or company carrying on or proposing to carry on any business which this Company is authorised to carry on or possessed of property suitable for the purposes of the Company or which can be carried

on in conjunction there with or which is capable of being conducted so as directly or indirectly to benefit the Company.

19. To procure the registration or recognition of the Company in or under the laws of any place outside India.

20. To form, incorporate or promote any company or companies whether in India or elsewhere, having amongst its or their objects the acquisition of all or any of the assets or control, management or development of the Company or any other objects or object which in the opinion of the Company could or might directly or indirectly assist the Company in the management of its business or the development of its properties or otherwise prove advantageous to the Company and to pay all or any of the costs and expenses incurred in connection with any such promotion or incorporation and to remunerate any person or company in any manner it shall think fit for services rendered or to be rendered in obtaining subscription for or placing or assisting to place or to obtain subscriptions for or for guaranteeing the subscription of or the placing of any shares in the capital of the Company or any bonds, debentures obligations or securities of the Company or any stock, shares, bonds, debentures, obligations or securities of any other company held or owned by the Company or in which the Company may have an interest or in or about the formation or promotion of the Company or the conduct of its business or in or about the promotion or formation of any other company in which the Company may have an interest.

21. To amalgamate or to enter into partnership or into any arrangement for sharing profits, union of interests, co-operation, joint adventure or reciprocal concession or for limiting competition with any person or persons or company or companies carrying on or engaged in or about to carry-on or engage in, or being authorised to carry on or engage in any business or transaction which the Company is authorised to carry on or engage in or which can be carried on in conjunction therewith or which is capable of being conducted so as directly or indirectly to benefit the Company.

22. To enter into any arrangements and to take all necessary or proper steps with Governments or with other authorities supreme, national, local, municipal or otherwise of any place in which the Company may have interests and to carry on any negotiations or operations for the purpose of directly or indirectly carrying out the objects of the Company or effecting any modification in the constitution of the Company or furthering the interests of its members and to oppose any such steps taken by any other company, firm or person which may be considered likely directly or indirectly, to prejudice the

interests of the Company or its members and to promote or assist the promotion, whether directly or indirectly of any legislation which may appear to be in the interests of the Company and to oppose and resist, whether directly or indirectly, any legislation which may seem disadvantageous to the Company and to obtain from any such Government authority or any Company any charters, contracts, decrees, rights, grants, loans, privileges or concessions which the Company may think it desirable to obtain and carry out, exercise and comply with any such arrangements, charters, contracts, decrees, rights, privileges, or concessions.

23. To adopt such means of making known the products of the Company as may seem expedient and in particular by advertising in the press, by circulars, by purchase and exhibition of works of art or interest, by publication of books and periodicals and by granting prizes, rewards and donations.

24. To undertake and execute any trust, the undertaking of which may seem to the Company desirable and either gratuitously or otherwise and vest any real or personal property, rights, or interest acquired by or belonging to the Company in any person or company on behalf of or for the benefit of the Company, and with or without any declared trust in favour of the Company.

25. To apply the assets of the Company in any way in or towards the establishment, maintenance or extension of any association, institution or fund in any way connected with any particular trade or business or with trade or commerce generally and particularly with the trade, including any association, institution or fund for the protection of the interests of masters, owners and employers against loss by bad debts, strikes, combinations, fire, accidents or otherwise or for the benefit of any clerks, workmen or others at any time employed by the Company or any of its predecessors in business or their families or dependents and whether or not in common with other persons or classes of persons and in particular of friendly, cooperative and other societies, reading rooms, libraries, educational and charitable institutions, refractories, dining and recreation rooms, places of worship, schools, hospitals, residential buildings, bungalows, hotels, offices, warehouses, godowns, structures, erections, parks, gardens and to grant charities, gratuities, pensions and allowances and to contribute to any funds raised by public or local subscriptions for any purpose whatsoever and to farm, cultivate and otherwise develop the lands for the time being the property or in possession of the Company.

26. To aid pecuniarily or otherwise, any association, body or movement having for an object the solution, settlement or surmounting of Industrial or labour problems or troubles or the

(b) *Matters which are necessary for furtherance of the objects specified in clause 3(a) are

promotion of industry or trade.

27. To subscribe or guarantee money for any national, charitable, benevolent, public, general or useful object or for any exhibitions or subject to the provisions of the Companies Act, 1956 for political purposes.

28. To establish and maintain or procure the establishment and maintenance of any contributory or non-contributory pension or superannuation funds for the benefit of, and give or procure the giving of donations, gratuities, pensions, allowances or emoluments to any persons who are or were at any time in the employment or service of the Company, or of any company which is a subsidiary of the Company or is allied to or associated with the Company or with any such subsidiary company or who are or were at any time Directors or Officers of the Company or of any such other company as aforesaid and the wives, widows, families and dependants of any such persons, and also establish and subsidise and subscribe to any Institutions, associations, clubs or funds calculated to be for the benefit of or to advance the interests and well-being of the Company or of any such other company as aforesaid, and make payments to or towards the insurance of any such person as aforesaid and do any of the matters aforesaid, either alone or in conjunction with any such other company as aforesaid.

29. To distribute among the members in specie any property of the Company, or any proceeds of sale or disposal of any property of the Company, but so that no distribution amounting to a reduction of capital be made except with the sanction (if any) for the time being required by law.

30. To carry on any other business in any part of the world whether manufacturing or otherwise that may seem to the Company capable of being conveniently carried on in connection with the above objects or calculated directly or indirectly to enhance the value of or render profitable any of the Company's property or rights or which it may be advisable to undertake with a view to improving, developing, rendering, valuable or turning to account any property, real or personal, belonging to the Company or in which the Company may be interested and to do all or any of the above things, either as principals, agents, trustees, contractors or otherwise and alone or in conjunction with others, and either by or through agents, sub-contractors, trustees or otherwise.

31. To obtain approval of concerned authorities, wherever required, for carrying out main, ancillary or other objects of the company

32. To acquire, purchase and undertake the whole or any part of the business, assets and liabilities of any person carrying on any business, which the company is authorised to carry on, or possession of property suitable for the purpose of the main objects of the Company.

33. To acquire either leasehold or freehold any land, building, commercial, industrial, residential building, spaces or flats for running and management of trading business of the Company and for the purpose incidental and ancillary to such activities and to sell them or sublet them and to undertake and execute civil, mechanical, electrical and structural works contracts and sub contracts.

34. To act as dealer or agent in foreign exchange or to provide consultancy in the field of foreign exchange management both in India and abroad subject to the approval of appropriate authorities.

35. To promote any other company (ies), LLPs, or any other body corporate companies for the purpose of acquiring or taking over all or any of the property, rights, and liabilities of the company or for any other purpose which may directly or indirectly benefit the company.

36. To purchase, hire or otherwise acquire any movable or immovable property and any rights or privileges which the company may think necessary or convenient for the purposes of its business and in particular any land, buildings, casements, machinery, plant and stock in trade.

37. To advance money or give credit to any person or company; to give guarantee or indemnify for the payment of money or the performance of contracts or obligations by any person; to secure or undertake in any way the repayment of moneys lent or advanced to, or the liabilities incurred by any person subject to the provisions of the Act.

38. Subject to the provision of Companies Act, 2013 to borrow or secure money in such manner as the company may think fit or to make repayment of any debt, liability, perform any contract entered into or the issue of debentures, perpetual or otherwise, charged upon all or any of the company's property (both present and future), including its uncalled capital; and to purchase, redeem, or pay off any such securities.

39. Subject to the provision of Companies Act, 2013 to remunerate any person for services rendered, or to be rendered, in placing or assisting to place or guaranteeing the placing of any of the shares in the company's capital or any debentures or other securities issued by the company.

40. To open and operate any type of bank accounts with the Banks, financial institutions and obtain credit facilities with or without securities for its business.

41. To dispose of, to improve, manage, develop, or exchange the undertaking, property or rights of the company or any part thereof for such consideration as the company may think fit.

42. To guarantee the payment of money unsecured or secured or payable under or in respect of promissory notes, bonds, debentures, debenture- stocks, contracts, mortgages, charges,

obligations, instruments and securities of any company or of any authority, supreme, municipal, local or otherwise or of any persons whomsoever whether incorporated or not incorporated and to guarantee or become sureties for the performance of any contracts or obligations as may be necessary and the payment of money on dividends and interest on any stock, shares or securities of any company, corporation, firm or person in any case and to give guarantees or securities of both moveable or immoveable properties which may be created by way of lien, pledge, hypothecation or mortgage for any such persons, firms or companies as may appear proper or reasonable to the directors in which such guarantee or securities may be considered not directly related to the Company's business, to further the objects of the Company or the interest of its shareholders in any manner.

43. To adopt such means of making known and advertising the business of the company as may be expedient.

44. To apply for, promote, and obtain any order, regulation or other authorization or enactment, which may directly or indirectly benefit the company. 45. To procure recognition of the company in

any country or place outside India.

46. To issue or allot fully or partly paid shares in the capital or the company in payment or part payment of any movable or immovable property purchased or otherwise acquired by the company or any services rendered to the company.

47. To take mortgages, liens, and charges to secure payment of the purchase price, or any unpaid balance of the purchase price, of any part of the company's property of any kind sold by the company, or any money due to the company from buyer.

48. To generate electricity necessary for the purposes of the main business of the company.

49. Subject to the provision of the Companies Act, 2013 to pay out of the funds of the company all or any expenses which the company may lawfully pay for services rendered for formation and registration of the company and for promotion of any other company by it subject to the provisions of the Act. 50. To insure any of the properties,

undertaking, contracts, risk or obligations of the company in any manner whatsoever.

51. To refer all questions, disputes or difference arising between the company and any other person (other than a director of the Company) in connection with or in respect of any matter relating to the business or affairs of the company to arbitration in such manner and upon such terms as the company and such other person may mutually agree upon in each case and such reference to arbitration may be in accordance with the provisions of the Arbitration Act, 1940 (10 of

1940) and the Rules of the International Chamber of Commerce relating to arbitration, and to institute legal proceedings or defend any proceedings and to appoint advocates, Consultants or Advisors in this behalf.

52. To enter into negotiation or collaboration, technical or otherwise with any person or Government for obtaining any grant, license or on other terms, formulae and other rights and benefits, and to obtain technical information, know-how and expert advice for the production, manufacture and export or sale of all types of goods which the Company is authorised to produce or to deal in.

53. To create any depreciation fund, reserve, reserve fund, sinking fund or any special or other fund whether for repayment of redeemable preference shares, redemption of debentures or debenture-stock, for dividends, for equalizing dividends, for repairing, improving, extending and maintaining any part of the property of the Company.

54. To accumulate capital for any of the business of the Company and to appropriate the Company's assets for specific purposes.

55. To subscribe, underwrite, acquire and sell any shares, stocks, bonds, mortgages, obligations and securities of any kind issued or guaranteed by any company (body corporate or undertaking) carrying business altogether different or similar or analogous to the business of the Company and whosoever or carrying on business and shares, stocks, mortgage obligations and other securities issued and guaranteed by any government, other authority.

56. Subject to the provisions of the Act, or other enactment in force to indemnify and keep indemnified members, officers, directors, agents and servants of the Company against proceedings, costs, damages, claims and demands in respect or anything done or ordered to be done by them for and in the interest of the company and for any loss, damage, or misfortune whatever and which shall happen in execution of the duties of their office or in relation thereto.

57. To pay all costs, charges and expenses of and incidental to the promotion, incorporation and registration of the Company and charges in connection therewith and to remunerate (by cash or other assets or by allotment of fully or partly paid-up shares, by call or option on shares, debentures, debenture stock or securities of this or any other such Company or in any other manner whether out of the Company's capital or profit or otherwise) any person/persons or a company for services rendered or to be rendered in the conduct of the main business of the Company.

58. To pay for pre-incorporation expenses of the Company and to take-over and honor all commitments and agreements made by any or all of the promoters (whether subscribers or

Directors) of this Company with the express understanding that it will be taken over by the Company on incorporation and to pay for all preliminary project and pre-incorporation expenses and take over all advances paid by the promoters related to the incorporation or to any promoter's agreements mentioned herein before or to the proposed business of the Company.

59. Subject to the provisions of the Companies Act, 2013 including any statutory modification or re-enactment thereof for the time being in force, to distribute among the members in specie any property of the Company, or any proceeds of sale or disposal of any property of the Company, in the event of its winding up but so that no distribution amounting to a reduction of capital be made except with sanction (if any) for the time being required by law.

60. To undertake and execute any trust, the undertaking of which may seem to the Company desirable, either gratuitously or otherwise, to vest any real or personal property, rights or interests acquired by or belonging to the Company in any person or company on behalf or for the benefit of the Company and with or without any declared trust in favour of the Company to give and accept gifts, to create trusts for the welfare of employees, members, directors and/or their dependents, heirs and children and for any deserving object and for other persons..

61. To do all or any of the business and all such other things as are incidental or may be thought conducive to the attainment of the main objects or any of them in any part of the world and either as principals, agents, consultants, contractors, trustees or otherwise and by or through trustees, agents, consultants or otherwise and either alone or in conjunction with others.

62. Subject to the provisions of the Act, the Company shall have power to borrow any sum or sums of money for the purpose of the Company on such terms and conditions and from such person or persons, firms, bank or any financial, industrial, institutions or any government or semigovernment corporation as the Company may think fit.

63. To do all such other things in any part of the world as may be deemed incidental or conducive to the attainment of the main objects or any of them.

4 The liability of the member(s) is limited, and this liability is limited to the amount unpaid if any, on the shares held by them.

5 Every member of the company undertakes to contribute:

(i) to the assets of the company in the event of its being wound up while he is a member, or within one year after he ceases to be a member, for payment of the debts and liabilities of the company or of such debts and liabilities as may have been contracted before he ceases to be a member; and

(ii) to the costs, charges and expenses of winding up (and for the adjustment of the rights of the contributories among themselves), such amount as may be required, not exceeding * rupees.

(iii) The share capital of the company is rupees, divided into

8000000	Equity Share	Shares of	10	Rupees each	
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Attachments

First Subscriber (s) sheet

AOA_MOA.pdf

Declaration

Pursuant to resolution no. dated, I, on the behalf of Board of Directors, declare that following amendments have been adopted in Memorandum of Association:

AS PER THE MOA

To be digitally signed by

Name

KIRAN NATHANI

Designation

Director

DIN

10086860

DSC